

APPLICATION AND CERTIFICATION FOR PAYMENT

AIA DOCUMENT G702

PAGE 1 OF 3

TO CONTRACTOR:

Makers Line

537 W 600 S, Ste 400

Salt Lake City, UT 84101

FROM SUB-CONTRACTOR:

GM Custom Exteriors

4560 W 5780 S, SLC, UT 84118

PROJECT: **Hunters Landing**
407 West 12th Street
Ogden, UT 84401

VIA ARCHITECT:

APPLICATION #: 2

PERIOD TO: 03/31/2023

PROJECT #: 22-10004

CONTRACT DATE: 03/18/2022

Distribution to:

☐ OWNER☐ ARCHITECT☒ CONTRACTOR☐ CONST. MGR.☐ Lender

CONTRACT FOR:

CONTRACTOR'S APPLICATION FOR PAYMENT

Application is made for payment, as shown below, in connection with the Contract. Continuation Sheet, AIA Document G703, is attached.

1. ORIGINAL CONTRACT SUM	\$	580,570.00
2. NET CHANGE BY CHANGE ORDERS	\$	155,050.00
3. CONTRACT SUM TO DATE	\$	735,620.00
4. TOTAL COMPLETED & STORED TO DATE (Column G on G703)	\$	58,849.60
5. RETAINAGE: <u>5%</u> (Column K on G703) of Completed Work	\$	2,942.48
6. TOTAL EARNED LESS RETAINAGE	\$	55,907.12
7. LESS PREVIOUS CERTIFICATES FOR PAYMENT (Line 6 from prior Certificate)	\$	12,350.00
8. CURRENT PAYMENT DUE	\$	43,557.12
9. BALANCE TO FINISH, INCLUDING RETAINAGE	\$	679,712.00

The undersigned Contractor certifies that to the best of the Contractor's knowledge, information and belief the Work covered by this Application for Payment has been completed in accordance with the Contract Documents, that all amounts have been paid by the Contractor for Work for which previous Certificates for Payment were issued and payments received from the Owner, and that current payment shown herein is now due.

CONTRACTOR:

By: Sergio G. Date: 03/14/2023

State of: _____ County of: _____
Subscribed and sworn to before me this _____ day of _____
Notary Public: _____
My Commission expires: _____

ARCHITECT'S CERTIFICATE FOR PAYMENT

In accordance with the Contract Documents, based on on-site observations and the data comprising the application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information and belief the Work has progressed as indicated, the quality of the Work is in accordance with the Contract Documents, and the Contractor is entitled to payment of the AMOUNT CERTIFIED.

AMOUNT CERTIFIED\$ 43,557.12

(Attach explanation if amount certified differs from the amount applied. Initial all figures on this Application and on the Continuation Sheet that are changed to conform with the amount certified.)
ARCHITECT:

By: _____ Date: _____

This Certificate is not negotiable. The AMOUNT CERTIFIED is payable only to the Contractor named herein. Issuance, payment and acceptance of payment are without prejudice to any rights of the Owner or Contractor under this Contract.

CHANGE ORDER SUMMARY	ADDITIONS	DEDUCTIONS
Total changes approved in previous months	\$155,050.00	\$0.00
Total approved this Month	\$0.00	\$0.00
TOTALS	\$155,050.00	\$0.00
NET CHANGES by Change Order	\$155,050.00	

AIA DOCUMENT G702 - APPLICATION AND CERTIFICATION FOR PAYMENT - 1992 EDITION - AIA - ©1992

Users may obtain validation of this document by requesting a completed AIA Document D401 - Certification of Document's Authenticity from the Licensee.

THE AMERICAN INSTITUTE OF ARCHITECTS, 1735 NEW YORK AVE., N.W., WASHINGTON, DC 20006-5292

CONTINUATION SHEET

AIA DOCUMENT G703

PAGE 2

AIA Document G702, APPLICATION AND CERTIFICATION FOR PAYMENT, containing Contractor's signed certification is attached.

In tabulations below, amounts are stated to the nearest dollar.

Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION #:

2

APPLICATION DATE: 03/14/2023

PERIOD TO: 03/31/2023

ARCHITECT'S PROJECT #: 22-10004

A ITEM #	B DESCRIPTION OF WORK	C SCHEDULED VALUE	D WORK COMPLETED		F MATERIALS PRESENTLY STORED	G		H BALANCE TO FINISH	I RETAINAGE
			FROM PREVIOUS APPLICATION	THIS PERIOD		TOTAL COMPLETED AND STORED TO DATE	% COMPLETE		
1	Exteriors EIFS System	\$ 735,620.00	\$13,000.00	\$45,849.60		\$58,849.60	8.00%	\$679,712.00	\$2,942.48
42									
43									
44									
45									
46									
47									
48									
49									
50									
TOTALS		\$735,620.00	\$13,000.00	\$45,849.60	\$0.00	\$58,849.60	8.00%	\$679,712.00	\$2,942.48

UTAH CONDITIONAL WAIVER AND RELEASE UPON PROGRESS PAYMENT

Property Name: Hunters Landing Apartments
Property Location: 407 West 12th Street, Ogden, UT 84404
Undersigned's Customer: Makers Line, LLC.
Invoice/Payment Application Number: 2
Payment Amount: \$ 43,557.12
Payment Period: through 03-31-2023 Check #:

To the extent provided below, this document becomes effective to release and the undersigned is considered to waive any notice of lien or right under Utah Code Ann., Title 38, Chapter 1a, Preconstruction and Construction Liens, or any bond right under Utah Code Ann., Title 14, Contractors' Bonds, or Section 63G-6a-1103 related to payment rights the undersigned has on the above described Property once:

- (1) the undersigned endorses a check in the above referenced Payment Amount payable to the undersigned; and
- (2) the check is paid by the depository institution on which it is drawn.

This waiver and release applies to a progress payment for the work, materials, equipment, or a combination of work, materials, and equipment furnished by the undersigned to the Property or to the Undersigned's Customer which are the subject of the Invoice or Payment Application, but only to the extent of the Payment Amount. This waiver and release does not apply to any retention withheld; any items, modifications, or changes pending approval; disputed items and claims; or items furnished or invoiced after the Payment Period.

The undersigned warrants that the undersigned either has already paid or will use the money the undersigned receives from this progress payment promptly to pay in full all the undersigned's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or combination of work, materials, and equipment that are the subject of this waiver and release.

Dated: 03-14-2023

Company Name Gm Custom Exteriors LLC.

Sergio G.
Signature

By: Sergio G.
Printed Name

Its: Owner
Title

e-mail copy to:
OR Mail original to:

THIS DOCUMENT HAS A TRUE WATERMARK. THE FRONT OF THE DOCUMENT HAS A MICRO-PRINT SIGNATURE LINE. ABSENCE OF THESE FEATURES WILL INDICATE A COPY.

48277 / M 7575176-D

U FIRST
CREDIT UNION

3240 PAYABLE THROUGH BOKF, NA EUFAULA, OK

49-55
1031

NO. 1103909

POST OFFICE BOX 58025 • SALT LAKE CITY, UTAH 84158-0025 • (801) 481-8800

08/03/2023

UNIVERSITY FIRST FEDERAL CREDIT UNION

Cashier's Check

PAY THIS AMOUNT

\$43,557.12

PAY FORTY-THREE THOUSAND FIVE HUNDRED FIFTY-SEVEN AND 12/100 DOLLARS

TO THE GM CUSTOM EXTERIORS
ORDER 4560 WEST 5780 SOUTH
OF SALT LAKE CITY, UT 84118
12SB LLC - DRAW #10

Jack Butters

AUTHORIZED SIGNATURE

MP

407 WEST 12TH STREET, OGDEN, UT 84404

⑈ 1103909 ⑈ ⑈ 103100551⑈ ⑈ 0140010437906 ⑈

U FIRST
CREDIT UNION

NO. 1103909

Purpose of check: 407 WEST 12TH STREET, OGDEN, UT 84404

Acct XXXXXX2935 12SB LLC Effect: 08/03/23 Post: 08/03/23 Tlr: 0563

Check Number: 1103909

Time: 10:13am BR: 00

ID	DUE DATE	PRINCIPAL	INTEREST	FEES	NEW BALANCE	TRAN AMOUNT	SEQ
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(See receipt for reference)

Amount : \$43,557.12

Payee :

GM CUSTOM EXTERIORS

4560 WEST 5780 SOUTH

SALT LAKE CITY, UT 84118

12SB LLC - DRAW #10

Handle this check as you would cash. According to the Uniform Commercial Code (UCC) adopted by Utah and codified in the Utah code, the University First Federal Credit Union cannot place a stop payment on this check. The UCC guarantees to the payees that cashier's and teller checks are 'as good as cash' and are guaranteed funds. Therefore, there are limitations within the UCC when stop payments can be placed. The code states that **after 90 days**, the issuer of the check can sign an indemnity agreement which says the item is lost, stolen or destroyed to the best of the issuer's knowledge. At this time the University First Federal Credit Union can place a stop payment on the item. If stop payments could be placed at will on cashier's and teller checks and other guaranteed funds, these items would no longer be readily acceptable when conducting financial transactions.